

4.7 Distribution Scale and Multi-Regulator Exposure

The same marketing representations were distributed simultaneously through multiple independent channels, each of which carries separate regulatory oversight:

Distribution Channel	Regulatory Body	Applicable Authority	Exposure
Direct consumer enrollment (██████████)	FTC	Section 5, 15 U.S.C. § 45	Trade practice
400+ universities offering academic credit	Dept. of Education	Title IV; accreditation integrity	Represented credential value in credit-bearing programs
NGOs and workforce development boards (federal WIOA funds)	Dept. of Labor / ETA	WIOA §116; performance accountability	Federal funds allocated to program based on represented outcomes
Social Finance ISA fund (\$100M)	SEC (investigative)	Securities Act §10(b); Rule 10b-5	Material representations to investors in fund backed by certificate outcomes
Community colleges (50 states)	State AGs	State consumer protection statutes	Represented program value to state-enrolled students
Fortune 1000 upskilling via Guild Education	FTC; state AGs	Section 5; UCL; CPA	Corporate purchasers representations regarding credential value for workforce programs

The distribution architecture means that no single institutional response closes exposure across all regulatory vectors simultaneously. Each regulator acts under independent authority. Each submission strengthens the others by demonstrating the structural scale at which the representation operates.